

25SMCV02076 25SMCV02076

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

10, 2026

CASE NUMBER

25SMCV02076

MOTION

Motion

to Compel Arbitration

MOVING PARTIES

(1)

Defendants Damilola Adafeso; David Hurwitz; Kathlyn

Wolgast; Maya Wirick; Judith Haro; Alec Schely; and Lucia Alvarez

(2)

Joinder by Defendant Lisa Acosta, M.D.

OPPOSING PARTY

Plaintiff

Caleb Bronstein

MOTION

This case arises from allegations of medical negligence.

On April 23, 2025, Plaintiff Caleb Bronstein ("Plaintiff") brought suit against Defendants Lisa Acosta, M.D. ("Acosta"); Damilola Adefeso, N.P. ("Adefeso"); David Hurwitz, LMFT ("Hurwitz"); Katlyn Wolgast, ACSW ("Wolgast"); Maya Wirick, LVN ("Wirick"); Judith Haro, RN ("Haro"); Alec Schley, AMFT ("Schley"); and Lucia Alvarez, CAN ("Alvarez") alleging a single cause of action for medical negligence.

Defendants Adefeso, Hurwitz, Wolgast, Wirick, Haro, Schley, and Alvarez move to compel Plaintiff's claim to arbitration. Defendant Acosta has filed a joinder to the motion.

Plaintiff opposes both the motion and the joinder, and Defendants reply to both oppositions, respectively.

ANALYSIS

1.

MOTION TO COMPEL ARBITRATION – LEGAL STANDARDS

"[T]he advantages of arbitration include a presumptively less costly, more expeditious manner of resolving disputes. It follows a party to a valid arbitration agreement has a contractual right to have its dispute with another party to the contract resolved quickly and inexpensively." (Henry v. Alcove Investment, Inc. (1991) 233 Cal.App.3d 94, 99–100 [cleaned up].)

Thus, "on petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines

that an agreement to arbitrate the controversy exists.” (Code Civ. Proc., § 1281.2; see also

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Capital Partners v. Pless (2007) 150 Cal.App.4th 1311, 1320 [the language in section 1281.2 compelling arbitration is mandatory].) The right to compel arbitration exists unless the court finds that the right has been waived by a party's conduct, other grounds exist for revocation of the agreement, or where a pending court action arising out of the same transaction creates the possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2, subds. (a)-(c).)

“On a petition to compel arbitration, the trial court must first determine whether an agreement to arbitrate the controversy exists. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature.” (Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 543-544 [cleaned up].) The party seeking to compel arbitration must also “plead and prove a prior demand for arbitration and a refusal to arbitrate under the agreement.” (Mansouri v. Superior Court (2010) 181 Cal.App.4th 633, 640-641.)

And while the moving party on a motion to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, [a] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842 [cleaned up]; see also Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236 [“The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability”].)

2.

ENFORCEABLE ARBITRATION AGREEMENTS

In support of the motion, Defendants advance the Residential Care and Supervision Program Admission and Financial Agreement, executed by Plaintiff's guardians on Plaintiff's behalf and Ascend Healthcare (not a party to this action), which contains the following provision:

25. Dispute Resolution. In the event that any disagreement, dispute or claim arises among the parties hereto with respect to the enforcement or interpretation of this Agreement or any specific terms and provisions hereof or with respect to whether an alleged breach or default hereof has or has not occurred (collectively, a "Dispute"), such Dispute shall be settled in accordance with the following procedures:

25.1. Meet and Confer. In the event of a Dispute among the parties hereto, a party may give written notice to all other parties setting forth the nature of such Dispute (the "Dispute Notice. The parties shall meet and confer to discuss the Dispute in good faith within ten (10) days following the other parties' receipt of the Dispute Notice in an attempt to resolve the Dispute. All representatives shall meet at such date(s) and time(s) as are mutually convenient to the representatives of each participant within the "Meet and Confer Period" (as defined herein below).

25.2. Mediation. ,If the parties are unable to resolve the Dispute within thirty (30) days following the date of receipt of the Dispute Notice by the other parties (the "Meet and confer Period"), then the parties shall attempt in good faith to settle the Dispute through nonbinding mediation under the Mediation Rules of ADR Services, Inc. C-ADR Services"). A single disinterested third-party mediator located in Los Angeles, California shall be selected by ADR Services in accordance with its then current Mediation Rules. The parties to the Dispute shall share the expenses of the mediator and the other costs of mediation on a pro rata basis.

25.3. Arbitration. Any Dispute which cannot be resolved by the parties within sixty (60) days following the end of the Meet and Confer Period shall be resolved by final and binding arbitration (the "Arbitration-). The Arbitration shall be initiated and administered by and in accordance with the then current Arbitration Rules of AOR Services. The

Arbitration shall be held in Los Angeles County, unless the parties mutually agree to have such proceeding in some other locale; the exact time and location shall be decided by the arbitrator(s) selected in accordance with the then current Arbitration Rules of ADR Services. The arbitrator(s) shall apply California substantive law, or federal substantive law where state law is preempted. The arbitrator(s) selected shall have the power to enforce the rights, remedies, duties, liabilities, and obligations of discovery by the imposition of the same terms, conditions, and penalties as can be imposed in like circumstances in a civil action by a court of competent jurisdiction of the State of California. The arbitrator(s) shall have the power to grant all legal and equitable remedies provided by California law and award compensatory damages provided by California law, except that punitive damages shall not be awarded. The arbitrator(s) shall prepare in writing and provide to the parties an award including factual findings and the legal reasons on which the award is based. The arbitration award may be enforced through an action thereon brought in the Superior Court for the State of California in Los Angeles County. The prevailing party in any Arbitration hereunder shall be awarded reasonable attorneys' fees, expert and nonexpert witness costs and any other expenses Incurred directly or indirectly with said Arbitration, including without limitation the fees and expenses of the arbitrator(s).

THIS ELECTION OF AN ALTERNATIVE DISPUTE PROCESS
IS AN AFFIRMATIVE WAIVER OF THE PARTIES' RIGHTS TO A JURY TRIAL UNDER
CALIFORNIA LAW, Cal. C. Civ. Pro. Sec 631. BY SIGNING BELOW, EACH PARTY IS
EXPLICITLY WAIVING JURY TRIAL AND AUTHORIZING ANY AND ALL PARTIES TO FILE THIS
WAIVER WITH ANY COURT AS THE WAIVER REQUIRED UNDER Cal. C. Civ. Proc. Sec. 631(f)(2):

JURY TRIAL WAIVED:

Ascend Magnolia - By: Managing Director

Resident - By: Caleb Bronstein

(Ex.

A to Cohen Decl. at ¶¶ 25-25.3.)

In opposition, Plaintiff points out, among other things, that none of the Defendants to this action are parties to the agreement and argues that medical negligence claims fall outside the narrow scope of the arbitration provision in any event. The Court agrees

with both arguments.

First, it is apparent from the face of the agreement itself that Defendants are not parties, signatories, or expressly named third party beneficiaries of the agreement, and the primary moving Defendants do not even address this argument in reply.

Acosta argues in reply that Plaintiff should be compelled to arbitration, notwithstanding that none of the Defendants to this case are signatories to the agreement, under principles of agency, equitable estoppel, and third-party beneficiary law.

In support, Acosta cites to *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, where the Court of Appeal held that because the operative complaint alleged that each of the defendants were acting as agents of each other, they were therefore all allowed to compel the plaintiff's claims to arbitration.

While the Complaint at issue here alleges that each of the Defendants to this litigation were agents of each other (see, e.g. Complaint ¶ 3), the Complaint does not even mention Ascend, much less allege that any of the Defendants to this litigation were acting as agents of Ascend.

Thus, Defendants have not demonstrated they are parties to any arbitration agreement, and Acosta has not demonstrated that principles of estoppel, agency, and/or third-party beneficiaries permit Defendants to enforce the Ascend arbitration agreement.

Second, the arbitration provision at issue is narrow and does not cover tort claims like medical negligence.

"The decision as to whether a contractual arbitration clause covers a particular dispute rests substantially on whether the clause in question is 'broad' or 'narrow.'" (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 186.)

A "broad" clause that extends to tort claims includes language such as "any claim arising from or related to this agreement" or "arising in connection with the agreement." (*Ibid.*) By contrast, a narrow arbitration clause that covers only contractual performance or interpretation issues contains

language such as “relating to this agreement” or “in connection with this agreement.” (Ibid.)

Here, the disputes to which the arbitration provision apply are those “with respect to the enforcement or interpretation of this Agreement or any specific terms and provisions hereof or with respect to whether an alleged breach or default hereof has or has not occurred[.]” Thus, under the plain terms of the arbitration provision itself, only contractual claims, and not tort claims, are arbitrable.

In reply, Defendants cite to *In Coast Plaza Doctors Hospital v Blue Cross of California* (2000) 83 Cal.App.4th 677, 687 where the Court of Appeal, noting that any reasonable doubt as to whether the claims at issue are covered under the arbitration agreement must be resolved in favor of arbitration, found the language “any problem or dispute arising under this Agreement and/or concerning the terms of this Agreement” to be sufficiently broad to encompass tort claims.

By contrast, here, there is no such broad language encompassing claims arising under the agreement generally.

Rather, the specific phrases listed each apply exclusively to matters of contractual interpretation or performance. The agreement applies to disputes regarding (1) the enforcement or interpretation of this Agreement; (2) the specific terms and provisions of the Agreement; or (3) whether an alleged breach or default has or has not occurred. Thus, unlike the broad “arising under” language of *In Coast Plaza*, the arbitration agreement here lists only six specific issues (enforcement, interpretation, terms, provisions, breach, and default) all pertaining to contractual performance and interpretation.

CONCLUSION

In conclusion, finding Defendants are not parties to the arbitration agreement and have not demonstrated they are otherwise entitled to enforce the agreement under principles of agency, estoppel, and/or third-party beneficiaries, and that the plain language of the arbitration provision does not encompass tort claims like medical negligence in any event, the Court denies Defendants’ motion to compel Plaintiff’s medical negligence claim to arbitration.

Defendants shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 10, 2026 _____

Michael
E. Whitaker

Judge
of the Superior Court